

society&the arts DRUNKEN DRIVING

■ By Damayanti Datta

He is now a reformed character. Even a few months back, 25-year-old Dinesh Guleria's mind was a roadmap of parties. The Delhi youth would zoom about the city in his flashy car until the wee hours—stopping for a drink at a party, warming up with champagne at a lounge or swigging whiskey at a nightclub. It all stopped the day he lost control of his car, rammed into a flyover and was caught for drunken driving. The matter was taken to court and instead of slapping a fine or sending him to jail, the metropolitan magistrate gave him an unusual sentence: "You have to manage the traffic at the Kalkaji circle for 10 days." Guleria was lucky in a way, but standing for hours in the searing heat, inhaling dust and fume—not to mention the indignity of it all—really shook him up. "I'll never drink and drive again. Nobody should," he says now.

The unique punishment hit the headlines simply because it's a "crime" that India doesn't know how to deal with. Drinking and driving usually enters the spotlight when some horror stories—a BMW case, a Salman Khan or Alistair Pereira—come to light. Not anymore. Over one-fifth of road traffic injuries in India are due to alcohol, reports the World Health Organisation (WHO). Court records are teeming, the police are cracking down on errant drivers, civil society bodies are campaigning hard, the Law Commission of India is mulling over it and the apex court has come down heavily on the lack of "political will" to enforce road safety. A slew of radical legal amendments is just round the corner, with the parliamentary standing committee

proposing harsher penalties. If these are passed, road safety will acquire a new legitimacy.

So what's on offer? If drunken driving was so long relegated to the obscure Motor Vehicle Act (MVA), it will now become an offence per se. If it didn't elicit imprisonment until now, death due to drunken driving will now become culpable homicide not amounting to murder. If a drunken driver commits an accident, it will not be construed as mere negligence but as a premeditated crime. If the current penalty is a paltry fine of Rs 2,000, punishment including fine and cancellation of the licence will escalate spectacularly in tune with rising blood-alcohol count. If insurance and compensation to the affected do not figure in the scheme of things now, every vehicle will have to be insured against third-party liability and the compensation will go up to Rs 1 lakh.

Sobering statistics paint a grim picture. A 2006 WHO study, titled 'Burden and Socioeconomic Impact of Alcohol', traces the growing culture of drinking in India and underlines key patterns. "There's more binge drinking, early experimentation and decreasing age of initiation, more drinking outside meals, high levels of fiesta drinking and a greater acceptance of social drinking," reports the author, Dr G. Gururaj of the National Institute of Mental Health and Neurosciences, Bangalore. The study shows nearly 28 per cent of road crashes are influenced by alcohol, with 40 per cent drivers having had "three large drinks"; alcohol intake is observed in 80 per cent of suspicious driving cases and 35 per cent of random police checks; over 67 per cent are in the age group of 26-45 and 41 per

NOW: Alcohol level of 30 mg per 100 ml of blood is the permissible cut-off.

NEW: Punishment and fines will escalate in tune with rising blood-alcohol count.

NOW: Compensation to victims does not come under the purview of the existing laws.

NEW: The compensation amount may touch Rs 1 lakh in case of death.

NOW: Insurance is not legally binding in the current scheme of things.

NEW: It will be mandatory for every vehicle to be insured against third-party liability.